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CASE #	CASE NAME	HEARING NAME
CVRI2403574	SILVAS vs BMW OF NORTH AMERICA, LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

Summary of Ruling:

The Court awards attorney fees in the court's discretion, and such amount shall be no more than \$26,915 in fees. Additionally, the Court awards costs and expenses totaling \$2,770.

Facts/Procedural Summary

This is a lemon law case. Plaintiffs filed the instant lawsuit on June 20, 2024. Plaintiffs alleged various defects and nonconformities to warranty for their 2021 BMW M340i. The parties exchanged discovery and Plaintiff David Silvas was deposed. BMW's person most knowledgeable was also deposed. On August 15, 2025, BMW made a Section 998 offer in the amount of \$20,000 with attorney fees by motion. Plaintiffs accepted the offer.

Plaintiffs now bring the instant motion for attorney fees. Plaintiffs seek a total of \$42,561.50 plus costs and expenses totaling \$2,770. The motion is supported by the declaration of Jorge L. Acosta, attorney for Plaintiffs. Exhibit A to Acosta's declaration is a copy of the firm's billing records in this matter. Four separate attorneys worked on the instant matter, as well as law clerks and paralegals.

Defendant opposes the motion. Defendant argues this was a straightforward, not heavily-litigated case that does not warrant \$45,331.50 in fees and costs. Defendant argues the fees requested should be reduced to no more than \$15,000. Defendants challenge Plaintiffs' attorney's hourly rates as excessive. Defendant also challenges various billing entries and argues counsel charged excessive and improper amounts for various work performed.

Initially, Exhibit A to the Acosta declaration only included billing entries for Sergio Aivazov. Counsel realized the error and provided the full exhibit with the Reply. The court continued the hearing to allow Defendant time to review the Exhibit and file a supplemental Opposition.

Analysis

I. Recovering Attorney Fees

Under Civ. Code §1794(d), "[i]f the buyer prevails in an action under [the Song-Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees

based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” The matter of reasonableness of a party’s attorney fees is within the sound discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) The court must determine whether the amount requested is reasonable based on the circumstances of the case, including factors such as complexity of the case, procedural demands, skill exhibited and results achieved, and the court may reduce the amount if it is determined to be unreasonable. (*Goglin v. BMW of North America* (2016) 4 Cal. App. 5th 463, 470.)

The Lodestar method is used to calculate fees under section 1794(d). (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal. App. 4th 967, 997.) The lodestar amount is based on the time spent and reasonable hourly rate, and may be augmented or diminished based on several factors, including: “(1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award.” (Id at 998.) The purpose of a fee enhancement is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.)

The prevailing buyer has the burden of showing the fees incurred were allowable and reasonably necessary to the conduct of the litigation. (*Goglin, supra*, 4 Cal. App. 5th at 470.) Fee motions should be based on detailed time record. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 271.) Once the prevailing party has made a prima facie showing that its fee request was fair and reasonable, the burden of proof is on the opposing party to show by admissible evidence that the fees requested were unreasonable, either by the number of hours or the hourly rate or both. (*Maughan v. Google Technology* (2006) 143 Cal. App. 4th 1242, 1261.)

II. Reasonableness of Fees

Defendant does not dispute that Plaintiffs are entitled to recoup attorneys’ fees and costs, only that the amounts sought are unreasonable. The matter of reasonableness of a party’s attorney’s fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party’s attorney’s fees. These include “the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney’s efforts, and time consumed. [Citation omitted.]” (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.)

Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel’s declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379,

1394.) Specifically, in exercising its discretion, the Court may consider all facts and the entire procedural history of the case in setting the amount of a reasonable attorney's fee award. (*Bernardi*, *supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney's fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Id.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended is. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

Plaintiffs' counsel incurred \$42,561.50 in fees from attorneys Courtney Perdue (\$695/hour), Christopher Urner (\$525/hour), Jorge L. Acosta (\$450/hour for partner rate; \$350/hour for associate rate), and Sergio Aivazov (\$300/hour). Jorge L. Acosta billed 30.4 hours (9 hours at associate rate and 21.4 at partner rate). Christopher Urner billed 21.8 hours. Courtney perdue billed 10.7 hours. Sergio Aivazov billed 20 hours. Law clerks billed another 6.6 hours and a paralegal billed 13 hours.

Defendant first challenges the hourly rates for counsel. Defendant argues the hourly rates are excessively high and specifically challenges the \$695/hour rate for Courtney Perdue. Defendant's argument has merit. The vast majority of the hours billed in this matter were billed at a rate of \$450/hour or higher. This is high for lemon law claims in Riverside County. As such, the court reduces the hourly rates of \$450 or higher to \$350/hour.

Attorney	Original Rate	New Rate	Hours	Total
Courtney Perdue	\$695/hour	\$350/hour	10.7	\$3,745
Christopher Urner	\$525/hour	\$350/hour	21.8	\$7,630
Jorge L. Acosta (partner rate)	\$450/hour	\$350/hour	21.4	\$7,490
Jorge L. Acosta (associate rate)	\$350/hour		9	\$3,150
Sergo Aivazov	\$300/hour		20	\$6,000
Law Clerks	\$250/hour		6.6	\$1,650
Paralegal	\$250/hour		13	\$3,250
			Total	\$26,915

Defendant then challenges seven specific billing entries arguing that, individually, the entries are not concerning but when taken as a whole they indicate Plaintiffs' counsel's attempt to inflate attorney fees through a variety of methods. Defendant challenges the following entries:

- File Review in June 2024: Counsel billed 1.7 hours, 1.1 hours, and 1.4 hours for file review and similar tasks on June 10, 16, and 20. Defendant argues these hours should be reduced since counsel completed nearly identical tasks on each date.

- June 30, 2024: Counsel billed 2.3 hours for researching the NHTSA database. Defendant argues this is facially excessive.
- Drafting Discovery: Defendant challenges the 1.2 hours billed to draft standard discovery arguing Plaintiff's counsel relied on templates and overbilled the time spent.
- Notice of Deposition: Defendant challenges 1.5 hours billed to prepare multiple notices of deposition.
- Analysis of Objections: Defendant challenges Plaintiff's counsel billing 0.3 hours to review discovery objections every time they were served.
- Deposition Preparation: Defendant challenges the 2.9 hours billed to prepare Plaintiffs for deposition when the deposition never occurred. However, the deposition was noticed so it is not unreasonable for counsel to prepare for the deposition.
- Motions in Limine: Defendant challenges spending 4.2 hours on preparing motions in limine that did not serve any legitimate purpose.

The significant reduction in counsel's hourly rates has substantially reduced the lodestar fee amount. It is not also necessary to nitpick each of Plaintiff's counsel's billing entries. Additionally, even Defendant notes "[i]ndividually, the entries above do not raise substantial concern." (Supp. Opp. 5:19.) Defendant is correct as the above entries all appear to be facially appropriate. Given the court's adjustment of the overly inflated hourly rates, it is not also necessary to reduce the hours billed on these individual entries, as well.

Defendant did not challenge the claimed costs and expenses of \$2,770. Therefore, the court additionally awards this amount.